

25STCV29747 25STCV29747

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Case Number: 25STCV29747 Hearing Date: August 10, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

10, 2026 TRIAL DATE: January 31, 2028

CASE: Edwin

Antonio Lopez v. Ziba Management, LLC, et al.

CASE NO.: 25STCV29747

MOTION FOR SUMMARY

JUDGMENT OF DEFENDANTS HERMENEGILDO

ROBLEDO AND

HERMENIA ROBLEDO

MOVING

PARTY: Defendants

Hermenegildo Robledo and Hermenia Robledo, in pro per

RESPONDING PARTY: Plaintiff Edwin Antonio Lopez

This is a premises liability

action. On October 13, 2023, Plaintiff Edwin

Antonio Lopez ("Plaintiff") was showering in Apartment #1 of 217 S. Boyle

Avenue, Los Angeles, CA 90033 (the "Property") as an invitee when a portion of

the ceiling collapsed on Plaintiff. Plaintiff now brings this action against the owners and managers of the Property, Defendants, Hermenegildo Robledo and Hermenia Robledo, individually and as trustees of the Robledo Living Trust (the “Robledo Defendants”), and Ziba Management, LLC (“Ziba”).

I. BACKGROUND

On October 10, 2025, Plaintiff filed a Complaint against Defendants for premises liability.

On May 15, 2026, Robledo Defendants filed this motion for summary judgment.

On July 15, 2026, Plaintiff filed an opposition.

On July 30, 2026, Robledo Defendants filed a reply.

II. LEGAL STANDARD

The purpose of a motion for summary judgment “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.”¹ (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843; Code Civ. Proc., § 437c(c).)² A plaintiff reaches its burden on summary judgment by showing prima facie evidence for each element of its cause of action.³ (Code Civ. Proc., § 437c(p)(1); Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.)⁴ The burden will then shift to the defendant to show the existence of a triable issue of material fact for at least one element of the cause of action at issue or a defense thereto.⁵ (Code Civ. Proc., § 437c(p)(1).)

Courts “liberally construe the evidence in support of the party opposing summary judgment or summary adjudication and resolve doubts concerning the evidence in favor of that party.”⁶ (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.)⁷ However, if all inferences reasonably deducible

from the submitted evidence are uncontradicted by other inferences and there is no triable issue as to any material fact, the moving party is entitled to summary adjudication as a matter of law.¿ (Code Civ. Proc., § 437c(c); Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)¿

III. EVIDENTIARY OBJECTIONS

Plaintiff

submits six (6) objections to Defendants' separate statement and evidence cited thereto. The objections are OVERRULED.

IV. DISCUSSION

Robledo Defendants argue summary judgment of Plaintiff's claims are warranted because they have never owned the Property. The elements of a cause of action for premises liability are the same as those for negligence: duty, breach, causation, and damages.¿ (McIntyre v. The Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671; Civ. Code, § 1714, subd. (a).)¿ Therefore, to prevail on a claim for premises liability, the plaintiff must prove: (1) defendant owned or controlled the subject property; (2) defendant was negligent in the use or maintenance of the property; (3) plaintiff was harmed; and (4) defendant's negligence was a substantial factor in causing plaintiff's harm.¿ (See CACI No. 1000; Rowland v. Christian (1968) 69 Cal.2d 108.)

Here, the only evidence establishing Robledo Defendants' ownership of the Property is a deed recorded on December 4, 2024, which transferred ownership of the Property to the Robledo Living Trust. As Robledo Defendants explain, they were the owners of the property at 1757 Third Street, Los Angeles, California 90033 (the "Robledo Property") and attempted to transfer ownership of the Robledo Property to the Robledo Living Trust. However, the notary who prepared the deed used the wrong APN. The notary used APN 5174-013-008, which is the APN for the for the Property. The APN for the Robledo Property is 5174-013-006. Robledo Defendants disavow having ever owned any property other than the Robledo Property. Upon being served with the Complaint in this action, Robledo Defendants state they learned of the erroneous deed and have since corrected the error. (See Robledo Defendants' Separate Statement of Undisputed Material Facts (UMF) 3-7.) Based on the evidence presented, Robledo Defendants meet their burden to show there is no triable issue over the element of

ownership and control.

The burden shifts. Plaintiff does not meet his burden. Other than the erroneous deed, Plaintiff fails to present any evidence to show Robledo Defendants owned or controlled the Property. Instead, Plaintiff resorts to meritless objections. Plaintiff's showing is insufficient to defeat summary judgment.

Request for Continuance

Alternatively, Plaintiff requests a continuance to obtain essential facts to support his opposition. Plaintiff explains that he is awaiting responses from Ziba to Plaintiff's discovery which Plaintiff believes will clarify the ownership of the Property on the date of the incident. The request is unfounded. As discussed above, the only evidence of Robledo Defendants' ownership of the Property is a deed which was recorded after the date of the incident. Thus, even if the December 4, 2024 deed was not erroneous, Plaintiff does not present any event to show Robledo Defendants owned the Property at the time he suffered the injuries.

V. CONCLUSION

Based on the foregoing, the motion for summary judgment is GRANTED.

Plaintiff's request for a continuance is DENIED.

Defendants are ordered give notice, unless waived.

Dated: August 10, 2026

cc

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cc

¿ Brock T. Hammond

¿ Judge of the Superior
Court¿¿